

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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TANZANIA PAGE,

Plaintiff,

-against-

**FIRST AMENDED
VERIFIED COMPLAINT
Index No.: 716216/2017**

THE CITY OF NEW YORK, POLICE OFFICER
EVAN GALES, POLICE OFFICER CHRISTOPHER
STANGO, JOHN DOE 1-2, the names being fictitious
and currently unknown, and MAGNIFICENT 7's
ENTERPRISES, INC.,

Defendants.

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Plaintiff, TANZANIA PAGE, by her attorneys, RUBERT & GROSS, P.C., complaining
of Defendants, THE CITY OF NEW YORK (hereinafter referred to as "CITY"), POLICE
OFFICER EVAN GALES, POLICE OFFICER CHRISTOPHER STANGO, JOHN DOE 1-2,
and MAGNIFICENT 7's ENTERPRISES, INC. states:

1. That at all times hereinafter mentioned, Plaintiff, TANZANIA PAGE, was and
still is a resident of Queens County, City and State of New York.

2. At all times hereinafter mentioned, Defendant, CITY, was and is a municipal
corporation created, organized and duly existing under and by virtue of the laws of the State of
New York.

3. At all times hereinafter mentioned, Defendant, CITY, its agents, servants and/or
employees operated, maintained, managed and controlled the New York City Police Department,
including all police officers thereof.

4. At all times hereinafter mentioned, the New York City Police Department was an agency, instrumentality, department of Defendant, CITY, and/or Defendant, CITY, derived benefits from the activities of the New York City Police Department.

5. At all times hereinafter mentioned, Defendant, POLICE OFFICER EVAN GALES, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

6. Defendant, POLICE OFFICER EVAN GALES, is sued individually in his official capacity.

7. At all times hereinafter mentioned Defendant, POLICE OFFICER EVAN GALES, was acting within the scope of his employment as a police officer with the New York City Police Department.

8. At all times hereinafter mentioned Defendant, POLICE OFFICER EVAN GALES, was acting under color of law and authority as police officers with the New York City Police Department.

9. At all times hereinafter mentioned, Defendant, POLICE OFFICER CHRISTOPHER STANGO, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York.

10. Defendant, POLICE OFFICER CHRISTOPHER STANGO, is sued individually in his official capacity.

11. At all times hereinafter mentioned Defendant, POLICE OFFICER CHRISTOPHER STANGO, was acting within the scope of his employment as a police officer with the New York City Police Department.

12. At all times hereinafter mentioned Defendant, POLICE OFFICER CHRISTOPHER STANGO, was acting under color of law and authority as police officers with the New York City Police Department.

13. At all times hereinafter mentioned, Defendants, POLICE OFFICERS JOHN DOE 1-2, were employees and/or agents of the New York City Police Department, a municipal agency of the City of New York.

14. Defendants, POLICE OFFICERS JOHN DOE 1-2, are sued individually and in their official capacity.

15. At all times hereinafter mentioned Defendants, POLICE OFFICERS JOHN DOE 1-2, were acting within the scope of their employment as police officers with the New York City Police Department.

16. At all times hereinafter mentioned Defendants, POLICE OFFICERS JOHN DOE 1-2, were acting under color of law and authority as police officers with the New York City Police Department.

17. At all times hereinafter mentioned, the Defendant, MAGNIFICENT 7's ENTERPRISES, INC. (hereinafter "Magnificent 7") was and still is a corporation duly existing under the laws of the State of New York.

18. MAGNIFICENT 7 is authorized to do business, and does business, within New York State.

19. At all times relevant, the Defendant, MAGNIFICENT 7, owned a car service doing business as Magnificent 7 Car Service (hereinafter "Car Service"), located at 1085 Beach 21st Street, Queens, New York.

20. At all times relevant, the Defendant, MAGNIFICENT 7, operated the Car Service.

21. At all times relevant, the Defendant, MAGNIFICENT 7, managed the Car Service.

22. At all times relevant, the Defendant, MAGNIFICENT 7, hired and supervised agents, servants, contractors, and employees, including drivers.

23. On or about November 28, 2016 and within ninety (90) days of occurrences complained of herein, Plaintiff duly served a Notice of Claim upon Defendant, CITY, in the manner and mode required by law.

24. That more than thirty (30) days have elapsed since the service of Plaintiff's Notice of Claim and his claim has not been adjusted or paid.

25. That this action is brought within one (1) year and ninety (90) days from the date of occurrence complained of herein.

26. That Plaintiff has complied with all conditions precedent applicable to the instant action.

27. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION
False Arrest Under New York Law

28. Plaintiff repeats and reiterates each and every allegation contained in the forgoing paragraphs as if fully set forth herein.

29. That on August 31, 2016 at and around 8:30 p.m. at and around Beach Channel Drive and Beach 62nd Street in Queens, New York, Defendants, POLICE OFFICERS EVAN GALES, CHRISTOPHER STANGO, and JOHN DOE 1-2, stopped the livery cab in which

Tanzania Page was a passenger, and arrested, jailed, and thereafter prosecuted Plaintiff on the false charge of criminal possession of marijuana.

30. At around that time, Ms. Page had hired a car from Defendant, MAGNIFICENT 7, to travel home.

31. The driver provided by MAGNIFICENT 7 was, unknown to Plaintiff, not licensed to drive an automobile or a vehicle for hire.

32. Defendant, CITY OF NEW YORK, stopped the vehicle.

33. Defendant, POLICE OFFICER EVAN GALES ("GALES"), a plainclothes officer in an unmarked auto, stopped the vehicle.

34. Defendant, POLICE OFFICER CHRISTOPHER STANGO ("STANGO"), a plainclothes officer in an unmarked auto, stopped the vehicle.

35. Defendant, CITY, questioned the driver provided by MAGNIFICENT 7 and determined that the driver was, among other things, not licensed to drive an automobile and not licensed to drive a vehicle for hire.

36. Defendant, GALES, questioned the driver provided by MAGNIFICENT 7 and determined that the driver was, among other things, not licensed to drive an automobile and not licensed to drive a vehicle for hire.

37. Defendant, STANGO, questioned the driver provided by MAGNIFICENT 7 and determined that the driver was, among other things, not licensed to drive an automobile and not licensed to drive a vehicle for hire.

38. Defendant, CITY, searched Ms. Page and found no contraband or other evidence of a crime.

39. Defendant, GALES, searched Ms. Page and found no contraband or other evidence of a crime.

40. Defendant, STANGO, searched Ms. Page and found no contraband or other evidence of a crime.

41. Defendants, JOHN DOE 1-2, searched Ms. Page and found no contraband or other evidence of a crime.

42. The driver provided by MAGNIFICENT 7 told the officers that he had marijuana in the automobile.

43. Defendant, CITY, searched the vehicle and found in the center console the driver's marijuana and pills.

44. Defendant, GALES, searched the vehicle and found in the center console the driver's marijuana and pills.

45. Defendant, STANGO, searched the vehicle and found in the center console the driver's marijuana and pills.

46. Defendants, DOE 1-2, searched the vehicle and found in the center console the driver's marijuana and pills.

47. Plaintiff was arrested.

48. Ms. Page was transported in handcuffs to the 100th Precinct Stationhouse.

49. Ms. Page was jailed there until she was transported to Queens Central Booking.

50. Plaintiff was eventually arraigned under Queens County Criminal Court Docket 2016QN039518 on the charge of violation of Penal Law 221.05.

51. Penal Law 221.05 is a violation, not a crime, for which a Desk Appearance Ticket typically is issued.

52. On September 1, 2016, the prosecution was adjourned in contemplation of dismissal and thereafter dismissed and sealed on September 30, 2016.

53. Plaintiff, TANZANIA PAGE, was wrongly detained and falsely arrested and imprisoned by Defendant, CITY, through its agents, servants and/or employees, including, but not limited to Defendants, GALE, STANGO, and DOE 1-2.

54. In initiating and continuing Plaintiff's wrongful detention and imprisonment, Defendant, CITY, caused Plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and her constitutional rights.

55. In initiating and continuing Plaintiff's wrongful detention and imprisonment, Defendant, GALE, caused Plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and her constitutional rights.

56. In initiating and continuing Plaintiff's wrongful detention and imprisonment, Defendant, STANGO, caused Plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and her constitutional rights.

57. In initiating and continuing Plaintiff's wrongful detention and imprisonment, Defendants, DOE 1-2, caused Plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and her constitutional rights.

58. At the time of her unlawful imprisonment, Plaintiff had not committed or attempted to commit any illegal act.

59. At the time of her unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

60. Defendant, CITY, lacked probable cause to believe that Plaintiff had committed any illegal acts.

61. Defendant, GALES, lacked probable cause to believe that Plaintiff had committed any illegal acts.

62. Defendant, STANGO, lacked probable cause to believe that Plaintiff had committed any illegal acts.

63. Defendants, DOE 1-2, lacked probable cause to believe that Plaintiff had committed any illegal acts.

64. At the time of Plaintiff's unlawful arrest, Defendant, CITY, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest was without probable cause.

65. At the time of Plaintiff's unlawful arrest, Defendant, GALES, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest was without probable cause.

66. At the time of Plaintiff's unlawful arrest, Defendant, STANGO, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest was without probable cause.

67. At the time of Plaintiff's unlawful arrest, Defendants, DOE 1-2, knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest was without probable cause.

68. Defendant, CITY, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

69. Defendant, GALES, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

70. Defendant, STANGO, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

71. Defendants, DOE 1-2, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

72. Defendant, CITY, willfully and wrongfully accused Plaintiff of having committed a violation of the Penal Laws of the State of New York.

73. Defendant, GALES, willfully and wrongfully accused Plaintiff of having committed a violation of the Penal Laws of the State of New York.

74. Defendant, STANGO, willfully and wrongfully accused Plaintiff of having committed a violation of the Penal Laws of the State of New York.

75. Defendants, DOE 1-2, willfully and wrongfully accused Plaintiff of having committed a violation of the Penal Laws of the State of New York.

76. That the aforesaid arrest was malicious, unlawful and not based upon probable cause and/or any other justification, and was therefore a false arrest.

77. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of her constitutional rights, the emotional upset, shock, fear, and trauma of, among other things, being unlawfully arrested, searched, handcuffed, jailed, and subject to prosecution on a false charge. The arrest and prosecution prevented her from engaging in her customary work as a home health aide.

78. By reason of the foregoing, Plaintiff demands judgment against Defendant, CITY, GALES, and STANGO in a sum of money, which exceeds the jurisdictional limit of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION
Assault and Battery

79. Plaintiff repeats and reiterates each and every allegation contained in the forgoing paragraphs as if fully set forth herein.

80. By the actions described above, Plaintiff, TANZANIA PAGE, was intentionally placed in apprehension of imminent harmful and offensive contact by police officers employed by Defendant, CITY.

81. By the actions described above, Plaintiff, TANZANIA PAGE, was intentionally touched in a harmful and offensive manner by police officers employed by Defendant, CITY.

82. By the actions described above, Plaintiff, TANZANIA PAGE, was assaulted, battered and otherwise injured without cause and/or justification by police officers employed by Defendant, CITY.

83. By reason of the foregoing, Plaintiff was injured and demands judgment against Defendant, CITY, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION
False Arrest - United States Constitution

84. Plaintiff repeats and reiterates each and every allegation contained in the forgoing paragraphs as if fully set forth herein.

85. By the actions described above, Defendant, GALES, deprived Plaintiff of her rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to her right to be free and secure in her person and her right to be free from arrest or search, except on probable cause or pursuant to warrant.

86. By the actions described above, Defendant, STANGO, deprived Plaintiff of her rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to her right to be free and secure in her person and her right to be free from arrest or search, except on probable cause or pursuant to warrant.

87. By the actions described above, Defendants, DOE 1-2, deprived Plaintiff of her rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to her right to be free and secure in her person and her right to be free from arrest or search, except on probable cause or pursuant to warrant.

88. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of her constitutional rights, the emotional upset, shock, fear, and trauma of, among other things, being unlawfully arrested, searched, handcuffed, jailed, and subject to prosecution on a false charge. The arrest and prosecution prevented her from engaging in her customary work as a home health aide.

89. By reason of the foregoing, Plaintiff was injured and demands judgment against Defendants, GALES, STANGO, and DOE 1-2, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION
Fair Trial - United States Constitution

90. Plaintiff repeats and reiterates each and every allegation contained in the foregoing paragraphs as if fully set forth herein.

91. Defendant, GALES, created or allowed the creation of false evidence against Plaintiff.

92. Defendant, STANGO, created or allowed the creation of false evidence against Plaintiff.

93. Defendants, DOE 1-2, created or allowed the creation of false evidence against Plaintiff.

94. The false evidence was forwarded to prosecutors in the District Attorney's office.

95. In creating or allowing the creation of false evidence against Plaintiff, and in forwarding false information to prosecutors, Defendant, GALES, violated Plaintiff's constitutional right under the Fourteenth Amendment to the United States Constitution not to be deprived of liberty as a result of the fabrication of evidence by a police officer.

96. In creating or allowing the creation of false evidence against Plaintiff, and in forwarding false information to prosecutors, Defendant, STANGO, violated Plaintiff's constitutional right under the Fourteenth Amendment to the United States Constitution not to be deprived of liberty as a result of the fabrication of evidence by a police officer.

97. In creating or allowing the creation of false evidence against Plaintiff, and in forwarding false information to prosecutors, Defendants, DOE 1-2, violated Plaintiff's constitutional right under the Fourteenth Amendment to the United States Constitution not to be deprived of liberty as a result of the fabrication of evidence by a police officer.

98. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of her constitutional rights, the emotional upset, shock, fear, and trauma of, among other things, being jailed and subject to prosecution on a false charge. The arrest and prosecution prevented her from engaging in her customary work as a home health aide.

99. By reason of the foregoing, Plaintiff demands judgment against Defendants, GALES, STANGO, and DOE 1-2, in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION
Negligent Hiring, Training and Supervision Against
The City of New York

100. Plaintiff repeats and reiterates each and every allegation contained in the forgoing paragraphs as if fully set forth herein.

101. That the actions of Defendant, CITY, through its agents, servants and/or employees, including Defendants, GALES, STANGO, and JOHN DOE 1-2, heretofore described constitute negligence in that Defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, including Defendants, GALES, STANGO, and JOHN DOE 1-2.

102. That the actions of Defendant, CITY, through its agents, servants and/or employees, including Defendants, GALES, STANGO, and JOHN DOE 1-2, heretofore described constitute negligence in that Defendant, CITY, negligently supervised or failed to supervise its agents, servants and/or employees.

103. That the actions of Defendant, CITY, through its agents, servants and/or employees, including Defendants, GALES, STANGO, and JOHN DOE 1-2, heretofore described constitute negligence in that Defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees.

104. That the actions of Defendant, CITY, through its agents, servants and/or employees, including Defendants, GALES, STANGO, and JOHN DOE 1-2, heretofore described constitute negligence in that Defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees.

105. That Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, especially Defendants, GALES, STANGO, and JOHN DOE 1-2, who the CITY knew or, in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of authority and misused and abused their positions.

106. As a result of the negligence of Defendant, CITY, Plaintiff was caused to suffer personal injuries, violation of her constitutional rights, the emotional upset, shock, fear, and trauma of, among other things, being unlawfully arrested, searched, handcuffed, jailed, and subject to prosecution on a false charge. The arrest and prosecution prevented her from engaging in her customary work as a home health aide.

107. By reason of the foregoing, Plaintiff demands judgment against Defendant, CITY, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION
Negligent Hiring, Training and
Supervision against Magnificent 7

108. Plaintiff repeats and reiterates each and every allegation contained in the forgoing paragraphs as if fully set forth herein.

109. Defendant, MAGINIFICENT 7, negligently screened and hired or failed to screen agents, servants, contractors, and/or employees, including, but not limited to those involved in the incident herein, who MAGINIFICENT 7 knew, or in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions.

110. Defendant, MAGINIFICENT 7, negligently trained or failed to train agents, servants, contractors, and/or employees, including, but not limited to those involved in the incident herein.

111. Defendant, MAGINIFICENT SEVEN, negligently supervised or failed to supervise agents, contractors, servants and/or employees, including but not limited to those involved in the incident herein.

112. Defendant, MAGINIFICENT SEVEN, negligently disciplined or failed to discipline agents, servants, contractors, and/or employees, including, but not limited to those involved in the incident herein.

113. Defendant, MAGINIFICENT SEVEN, negligently retained or failed to terminate agents, servants, contractors, and/or employees who MAGINIFICENT 7 knew, or in the course of adequate and proper investigation, should have reasonably known, were unfit to hold their positions.

114. Defendant, MAGINIFICENT SEVEN, knew, or in the course of adequate and proper investigation, should have reasonably known, that its agents, servants and/or employees, including, but not limited to those involved herein, were unfit to hold their position.

115. Defendant, MAGINIFICENT SEVEN, was negligent in failing to protect the Plaintiff, TANZANIA PAGE, from a known and foreseeable risk of harm.

116. Defendant's, MAGINIFICENT SEVEN, negligence in screening, hiring, training, supervising, disciplining, and retaining its agents, servants and/or employees, including, but not limited to those involkved herein, proximately caused Plaintiff's injuries.

117. As a consequence thereof, Plaintiff has been injured and demands judgment against Defendant, MAGNIFICENT 7, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION
Federal Claims against The City of New York

118. Plaintiff repeats and reiterates each and every allegation contained in the forgoing paragraphs as if fully set forth herein.

119. That the actions of Defendant, CITY, its agents, servants and/or employees heretofore described violate Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful arrest and prosecutions based on false evidence.

120. That the supervisors and policy making officers of Defendant, CITY, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

121. That Defendant, CITY, has failed to properly and effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

122. That Defendant, CITY, hired and retained in its employ certain police officers, including, but not limited to, Defendants, GALES, STANGO, and DOE 1-2, with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

123. At all times material to this Complaint, Defendant, CITY, acting through its police department, had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of Defendants, GALES, STANGO, and JOHN DOE 1-2.

124. That these policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers

engaged in warrantless and otherwise unlawful arrests and imprisonments or providing false evidence to District Attorneys in furtherance of prosecution, particularly those officers who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

125. At all times material to this Complaint, Defendant, CITY, had in effect policies, practices and customs of allowing, permitting and or ratifying warrantless and unlawful arrests and the providing of false evidence.

126. That the policy of failing properly to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:

- a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
- d) The fact that, upon information and belief, only a small number of police officers have been has been fired for such misconduct since 1989.
- e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

127. That the policymakers of the Police Department and Defendant, CITY, knew or should have known that Defendants police officers, GALES, STANGO, and JOHN DOE 1-2, and other police officers in the Department were violating the Constitutional rights of the people of New York City.

128. That Defendant, CITY, in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, Defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.

129. That Defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never even reopens an investigation previously conducted.

130. That in a substantial number of cases, Defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.

131. That Defendant, CITY, and the New York City Police Department tolerates and encourages police officers to lie to cover up wrongful conduct as evidenced by the Mollen Commission Report, July 7, 1994. The effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

132. That Defendant, CITY, failed to effectively screen, hire, train, supervise and discipline its police officers, including, but not limited to, Defendant police officers, GALES, STANGO, and JOHN DOE 1-2, herein, for their lack of truthfulness and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing the Defendant police officers to falsely, arrest, imprison, and to offer false evidence and to otherwise cause injury and violation of federal and state constitutional rights, or to permit these action to take place with knowledge or consent.

133. On information and belief, Defendants, GALES, STANGO, and JOHN DOE 1-2, or some of them have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the Defendant, CITY, and the New York City Police

Department on notice that Defendant police officers herein were likely to engage in conduct violating the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff herein.

134. That Defendant, CITY, failed to put into place and otherwise maintain an adequate structure for risk containment and stress management relative to its police officers. The structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

135. That as a result of the foregoing conscious policies, practices, customs or usages, Defendant, CITY, has permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unconstitutional behavior.

136. That such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to Plaintiff herein.

137. As a result of the forgoing, Plaintiff was caused to suffer personal injuries, violation of her constitutional rights, the emotional upset, shock, fear, and trauma of, among other things, being unlawfully arrested, searched, handcuffed, jailed, and subject to prosecution

on a false charge. The arrest and prosecution prevented her from engaging in her customary work as a home health aide.

138. By reason of the foregoing, Plaintiff demands judgment against Defendant, CITY, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION
Failure to Intervene to Prevent Violation of Constitutional Rights

139. Plaintiff repeats the allegations of foregoing paragraphs as though fully stated here.

140. Defendant, GALES, had a reasonable opportunity to prevent, end, or truthfully report the misconduct to which Plaintiff was subjected, but failed to intervene, thereby violating Plaintiffs rights under the Fourth and Fourteenth Amendments.

141. Defendant, STANGO, had a reasonable opportunity to prevent, end, or truthfully report the misconduct to which Plaintiff was subjected, but failed to intervene, thereby violating Plaintiffs rights under the Fourth and Fourteenth Amendments.

142. Defendants, JOHN DOE 1-2, had a reasonable opportunity to prevent, end, or truthfully report the misconduct to which Plaintiff was subjected, but failed to intervene, thereby violating Plaintiffs rights under the Fourth and Fourteenth Amendments.

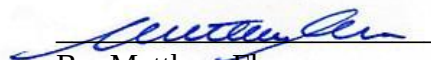
143. As a result of the foregoing, Plaintiff was caused to suffer personal injuries, violation of her constitutional rights, the emotional upset, shock, fear, and trauma of, among other things, being unlawfully arrested, searched, handcuffed, jailed, and subject to prosecution on a false charge. The arrest and prosecution prevented her from engaging in her customary work as a home health aide.

144. By reason of the foregoing, Plaintiff demands judgment against Defendants, GALES, STANGO, and DOE 1-2, in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

WHEREFORE, Plaintiff, TANZANIA PAGE, respectfully demands judgment against Defendants, THE CITY OF NEW YORK, EVAN GALES, CHRISTOPHER STANGO, JOHN DOE 1-2, and MAGNIFICENT 7's ENTERPRISES, INC. and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action pursuant to 42 U.S.C. §1988; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
December 10, 2019

RUBERT & GROSS, P.C.
Attorneys for Plaintiff
150 Broadway Suite 712
New York, New York 10038


By: Matthew Flamm

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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TANZANIA PAGE,

Plaintiff,

VERIFICATION

Index No.: 716216/2017

-against-

THE CITY OF NEW YORK, POLICE OFFICER
EVAN GALES, POLICE OFFICER CHRISTOPHER
STANGO, JOHN DOE 1-2, the names being fictitious
and currently unknown, and MAGNIFICENT 7's
ENTERPRISES, INC.,

Defendants.

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MATTHEW FLAMM, an attorney duly admitted to practice before the Courts of the
State of New York, affirms the following to be true under the penalties of perjury pursuant to
Civil Practice Law and Rules Section 2106.

I am associated with Rubert & Gross, P.C., attorneys for the Plaintiff and have read
the foregoing AMENDED VERIFIED COMPLAINT and know the contents thereof; the
same is true to my own knowledge, except as to matters therein stated to be alleged upon
information and belief, and as to those matters, I believe them to be true. The reason this
verification is made by me and not the Plaintiff is that she does not reside in the county in
which I have my office. CPLR §3020 (d)(3).

DATED: December 10, 2019
New York, New York


Matthew Flamm